

Texas ruling boils down to politics vs. race

High court isn't likely to block redistricting effort that could affect control of the House.

By DAVID G. SAVAGE

WASHINGTON — The Texas redistricting case now before the Supreme Court turns on a question that often divides judges: Were the voting districts drawn based on politics or race?

The answer, likely to come in a few days, could shift five congressional seats and tip political control of the House of Representatives after next year's mid-term elections.

Justice Samuel A. Alito Jr., who oversees appeals from Texas, put a temporary hold on a judicial ruling that branded the newly drawn Texas voting map a "racial gerrymander."

The state's lawyers asked for a decision by Monday, noting that candidates have a Dec. 8 deadline to file for election.

They said the judges violated the so-called Purcell principle by making major changes in the election map "midway through the candidate filing period," and that alone calls for blocking it.

Texas Republicans have

reason to be confident the court's conservative majority will side with them.

"We start with a presumption that the legislature acted in good faith," Alito wrote for a 6-3 majority last year in a South Carolina case.

That state's Republican lawmakers had moved tens of thousands of Black voters in or out of newly drawn congressional districts and said they did so not because of their race but because they were likely to vote as Democrats.

In 2019 the conservatives upheld partisan gerrymandering by a 5-4 vote, ruling that drawing election districts is a "political question" left to states and their lawmakers, not judges.

All the justices — conservative and liberal — say drawing districts based on the race of the voters violates the Constitution and its ban on racial discrimination. But the conservatives say it's hard to separate race from politics.

They also looked poised to restrict the reach of the Voting Rights Act in a pending case from Louisiana.

For decades the civil rights law has sometimes required states to draw one or more districts that would give Black or Latino voters a [See Redistricting, A6]



CODY MATHISON Mammoth Mountain

THE MAMMOTH MOUNTAIN ski resort on Thursday, its opening day this year. The recent storms will prime watersheds for future precipitation, experts say.

RECENT STORMS ARE A GOOD START

Much of state is now out of drought, but it's not out of danger in terms of fire, water.

By ALEX WIGGLESWORTH

A string of early season storms that drenched Californians last week lifted much of the state out of drought and significantly reduced the risk of wildfires, experts say.

It's been the wettest November on record for Southern and central communities such as Van Nuys and San Luis Obispo. Santa Barbara has received an eye-popping 9.5 inches of rain since Oct. 1, marking the city's wettest start to the water year on record.

And overall the state is sitting at 186% of its average rain so far this water year, according to the Department of Water Resources.

But experts say that despite the auspicious start, it's still too soon to say how the rest of California's traditional rainy season will shape up.

"The overall impact on our water supply is TBD [to be determined] is the best way to put it," said Jeff Mount, senior fellow at the Public Policy Institute of California's Water Policy Center. "We haven't even really gotten into the wet season yet."

California receives the vast bulk of its rain and snow between December and March, trapping the runoff in its reservoirs to mete out during the hot, dry seasons that follow.

Those major reservoirs are now filled to 100% to 145% of average for this time of year. That's not just from the recent storms — early season rains tend to soak mostly into the parched ground — but also because California is building on three prior wet winters, state climatologist Michael Anderson said.

A record-breaking wet 2022-23 winter ended the state's driest three-year period on record. That was followed by two years that were wetter than average for Northern California but drier than average for the southern half, amounting to roughly average precipitation statewide.

According to the latest U.S. Drought Monitor report, issued last week before the last of the recent storms had fully soaked the state, more than 70% of California was drought-free, compared with 49% a week before. Nearly 47% of Los Angeles County emerged from moderate drought, with the other portions improving to abnormally dry, the map shows. Abnormally dry conditions also ended in Ventura, Santa Barbara, San Luis Obispo and much of Kern counties, along with portions of Central California. [See Storms, A6]

Flu may hit state early, say experts

By RONG-GONG LIN II

California could have an early start to the annual flu season, as a combination of low vaccination rates and late mutations to the virus may leave the state particularly exposed to transmission, health experts say.

Already there are warning signs. Los Angeles County recently reported its first flu death of the season, and other nations are reporting record-breaking or powerful, earlier-than-expected flu seasons.

Typically flu picks up right after Christmas and into the new year, but Dr. Elizabeth Hudson, regional physician chief of infectious diseases at Kaiser Permanente Southern California, said she expects increases in viral activity perhaps over the next two to three weeks.

"We're expecting an early and likely sharp start to the flu season," Hudson said.

Last year's flu season was the worst California had experienced in years, and it's not usual for there to be back-to-back bad flu seasons. But a combination of a decline in flu vaccination rates and a "souped-up mutant" is particularly concerning this year, according to Dr. Peter Chin-Hong, an infectious diseases expert at UC San Francisco.

"That may translate into more people getting infected. And as more people get infected, a proportion of them will go to the hospital," Chin-Hong said.

The timing of this new flu subvariant — called H3N2 subclade K — is particularly problematic. It emerged toward the end of the summer, long after health officials already determined how to formulate this fall's flu vaccine, a decision that had to be made in February.

H3N2 subclade K seems to be starting to dominate in Japan and Britain, Hudson said.

"It looks like a bit of a mismatch between the seasonal flu vaccine strains" and the new subvariant, she said.

[See Flu season, A7]

Judge dismisses Comey, James cases

WASHINGTON — A federal judge on Monday dismissed the criminal cases against former FBI Director James Comey and New York Atty. Gen. Letitia James, concluding that the prosecutor who brought the charges at President Trump's urging was illegally appointed by the Justice Department.

The rulings from U.S. District Judge Cameron McGowan Currie halt at least for now a pair of prosecutions that targeted two of the president's most high-profile political opponents and amount to a stunning rebuke of the Trump administration's legal maneuvering to install an inexperienced and loyalist prosecutor willing to file the cases.

The orders do not concern the substance of the al-

Prosecutor who brought charges was illegally installed, ruling states

By Eric Tucker



J. SCOTT APPLEWHITE Associated Press

FORMER FBI Director James Comey was charged with lying to Congress by the Justice Department.

legations against Comey or James but instead deal with the unconventional manner in which the prosecutor, Lindsey Halligan, was named to her position as interim U.S. attorney for the Eastern District of Virginia. Defense lawyers said the Trump administration had no legal authority to make the appointment. In a pair of similar rulings, Currie agreed and said the invalid appointment required the dismissal of the cases.

"All actions flowing from Ms. Halligan's defective appointment," including securing and signing the indictments, "were unlawful exercises of executive power and are hereby set aside," she wrote.

The Justice Department did not immediately disclose [See Indictments, A6]

Climate summit viewed as flop by many

The COP30 talks held in Belem, Brazil, end without a timeline for reducing fossil fuels.

By PETER PRENGAMAN

This year's U.N. climate conference in Brazil had many unique aspects that could have been part of a historic outcome.

COP30, as it's called, was hosted in Belem, a city on

the edge of the Amazon rainforest, a crucial regulator of climate and home to many Indigenous peoples who are hit hard by climate change and are part of the solution. It had the heft of Brazilian President Luiz Inácio Lula da Silva, an influential and charismatic leader on the international stage known for his ability to bring people together. And encouraged by Lula's rousing speeches in the summit's beginning days, more than 80 nations called for a detailed road

map for the world to sharply reduce the use of gas, oil and coal, the main drivers of climate change.

In the end, none of that mattered.

The final decision announced over the weekend, which included some tangible things such as an increase in money to help developing nations adapt to climate change, was overall watered down compared with many conferences in the last decade and fell far [See COP30, A7]



MISPER APAPU Associated Press

BRAZILIAN President Luiz Inácio Lula da Silva had been optimistic.

Big landlord settles rent-fixing case

Officials say software let Greystar and rivals share data and drive up rates in tandem.

By ROGER VINCENT

Greystar, which manages dozens of apartment complexes in Southern California, settled a lawsuit that alleges the property giant and other landlords colluded to keep rents artificially high.

The unusual action is aimed at limiting rent increases in Southern Califor-

nia, where rents already are among the highest in the country.

The national apartment landlord and manager was a defendant in a lawsuit filed in January by the Department of Justice that focuses on software from RealPage that is used by many apartment operators to set rent prices for vacant units and renewal rates for existing tenants.

The lawsuit alleges Greystar and other landlords were illegally using RealPage to share proprietary data so they could align their prices and drive

up rents.

Greystar manages nearly 1 million apartments in the U.S., according to real estate data provider CoStar. It is one of the country's largest apartment managers.

Last week Greystar agreed to stop using software offered by any company, including RealPage, that uses competitively sensitive information to align rent prices, California Atty. Gen. Rob Bonta said. Greystar also agreed to cooperate in the ongoing prosecution of RealPage and other defendant landlords. [See Rent-fixing, A11]

Officials report progress made on Ukraine plan

Washington's 28-point proposal on ending Russia's war was thoroughly discussed, one advisor to Kyiv says. **WORLD, A2**

State's budget hole deepens

Gains are erased by mandatory spending and greater safety-net outlays due to federal cuts. **CALIFORNIA, B1**

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Markets **A11**
Opinion Voices ... **A12-13**

Rams rolling but have a long road

They can't think Super Bowl yet amid Stafford's MVP season, Sam Farmer writes. **SPORTS, B10**

Turkey prices down in stores

Other food items for the Thanksgiving holiday table may cost consumers more. **BUSINESS, A9**

Weather
Sunshine.
L.A. Basin: 77/58. **B6**

